

Pinnamaneni Chandra Sekhara Rao vs Yarramsetti Venkata Rao on 20 April, 2022

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

MAIN CASE: CIVIL REVISION PETITION No.774 of 2021

PROCEEDING SHEET

Sl	DATE	ORDER	OFFICE
No			NOTE
9.	20.4.2022	NJS, J	

CIVIL REVISION PETITION No.774 of 2021

Heard the learned counsel for the petitioner and
the learned counsel for the respondent.

The present Civil Revision Petition is filed against the Order dated 11.4.2021 in I.A.No.796 of 2015 in HMOP No.66 of 2015. By the said order, the petitioner was directed to pay the respondent herein Rs.25,000/- per month towards interim maintenance till disposal of the HMOP.

This Court by an order dated 04.9.2021, while directing notice before admission, granted interim suspension of the order dated 11.4.2021 for a period of two weeks and the said order was subsequently extended from time to time.

The respondent herein filed a Vacate Stay Petition and in the counter a specific contention is raised with regard to maintainability of the Civil Revision Petition under Article 227 of the Constitution of India against the impugned order dated 11.4.2021.

The learned counsel for the petitioner inter alia contended that the Revision Petition against the order under challenge is maintainable as the same is only an Interlocutory Order pending disposal of the main Petition filed for judicial separation and permanent alimony and the objection raised in the counter mainly with regard to the maintainability of the Civil Revision Petition is not sustainable. The learned counsel, in this regard, placed reliance on the decision of a learned Judge of High Court of Madras in P.T.Lakshman Kumar vs. Mrs.Bhavani, CRP (PD) No.1765 of 2010 Civil Revision Petition No.774 of 2021 and batch, dated 23.4.2013.

The learned counsel for the respondent, on the other hand, while reiterating the contention that the Civil Revision Petition is not maintainable, placed reliance on the decision of the Hon'ble Division Bench of the Delhi High Court in Manish Aggarwal vs. Seema Aggarwal, FAO No.388 of 2012, dated 13.9.2012. In the said judgment, while referring to the relevant provisions of the Hindu Marriage Act (HM Act) and the decisions rendered by different High Courts, it was ultimately opined that in respect of the orders passed under Sections 24 to 27 of the HM Act, appeals would lie under Section 19(1) of the Family Courts Act to the Division Bench, in view of the provision to sub-section (6) of Section 19 of the said Act, such orders being in the nature of intermediate orders. The Hon'ble

Division Bench further clarified that all the orders as may be passed by the Family Courts in exercise of its jurisdiction under Section 7 of the HM Act, which have a character of an intermediate order, and are not merely interlocutory orders, would be amenable to the appellate jurisdiction under sub-section (1) of Section 19 of the Family Courts Act.

The learned Single Judge of the Madras High Court in fact taken a similar view while referring to the orders of the Division Bench of Delhi High Court referred to above. The relevant portion of the order reads as follows:

"In my considered view, since an order made under Section 24 of the Hindu Marriage Act puts an end to the right of the claimant for interim alimony, as well as, the litigation expenses, assuming that it is an order, certainly, it is not interlocutory order as this order will have no bearing on the main case. As has been held by the Division Bench of the Delhi High Court, in Manish Aggarwal's case cited supra, at the most, we may call it as an intermediate order, which is appealable under Section 19(1) of the Family Courts Act".

Civil Revision Petition No.774 of 2021 In the light of the above legal position, the objection to the maintainability of the Civil Revision Petition is upheld.

However, considering the submissions made by the learned counsel for the petitioner, it is deemed appropriate to permit the petitioner to convert the present Civil Revision Petition into an Appeal, within a period of one week. In the meanwhile, though the learned counsel for the respondent opposed continuation of interim orders, keeping in view that the interim orders are subsisting for the last one year, the same remain in force for a further period of two weeks.

After conversion of the matter, the Registry shall obtain necessary orders from the Hon'ble the Chief Justice for listing the matter before the appropriate Division Bench.

_____ NJS, J Note:

Dispatch the order copy by 21.4.2022.

(By order) vasu